

of them (*f*), or *all* the creditors at large (*g*), for by the assignment of his whole substance the bankrupt became utterly insolvent; and if the trust was for one or some only of his creditors, it was a fraud upon the rest, and if it was for all the creditors, it was a fraud upon the spirit of the bankruptcy laws, which require a bankrupt's estate to be under the management of certain commissioners and assignees appointed as prescribed by the legislature — not of persons nominated by the debtor himself, and so more likely to further his views than promote the interest of the creditors (*h*).

[*512] *7. **Where deed could be supported.** — But in order to avoid the deed, there must have been in the existence a debt due at the time of its execution (*a*); and the assignment, though void as against creditors and the assignees in bankruptcy (*b*), was good as between the parties themselves (*c*). And assignments for valuable consideration at the full price, where the purchaser was not party or privy to the fraudulent designs of the vendor (*d*), or for less than the full price, if the transaction was *bonâ fide* (*e*), and mortgages made *bonâ fide* for fresh advances (*f*), or to secure payment of old debts and further advances combined (*g*), were not acts of bankruptcy and could not be impeached; and a conveyance and assignment by a trader *bonâ fide* of

C. Doug. 89, note; *Hooper v. Smith*, 1 W. Bl. 442, *per* Lord Mansfield; *Worseley v. De Mattos*, 1 Burr. 407; *Newton v. Chantler*, 7 East, 138.

(*f*) *Ex parte Foord*, cited *Worseley v. De Mattos*, 1 Burr. 477; *Alderson v. Temple*, 4 Burr. 2240, *per* Lord Mansfield; *Butcher v. Easto*, Doug. 282; *Devon v. Watts*, Doug. 86; *Hooper v. Smith*, 1 W. Bl. 442, *per* Lord Mansfield.

(*g*) *Kettle v. Hammond*, 1 Cooke's B. L. 108, 3d edit.; *Eckhardt v. Wilson*, 8 T. R. 140; *Tappenden v. Burgess*, 4 East, 230; *Dutton v. Morrison*, 17 Ves. 199, *per* Lord Eldon; *Simpson v. Sikes*, 6 M. & S. 312.

(*h*) See *Dutton v. Morrison*, 17 Ves. 199; *Worseley v. De Mattos*, 1

Burr. 476; *Simpson v. Sikes*, 6 M. & S. 312.

(*a*) *Ex parte Taylor*, 5 De G. M. & G. 392; *Ex parte Thomas*, De Gex, 612; *Ex parte Louch*, De Gex, 463; *Oswald v. Thompson*, 2 Exch. 215.

(*b*) *Doe v. Ball*, 11 M. & W. 531.

(*c*) *Bessey v. Windham*, 6 Q. B. 166.

(*d*) *Baxter v. Pritchard*, 1 Ad. & Ell. 456; *Rose v. Haycock*, Ib. 460; *Smith v. Hurst*, 10 Hare, 30.

(*e*) *Lee v. Hart*, 10 Exch. 555.

(*f*) *Bittlestone v. Cooke*, 6 Ell. & Bl. 296; *Hutton v. Cruttwell*, 1 Ell. & Bl. 15; *Harris v. Rickett*, 4 H. & N. 1; *Re Colemere*, 1 L. R. Ch. App. 128.

(*g*) *Whitmore v. Dowling*, 2 Foster & Finlason, 134.